



**SUPREME COURT
OF NEW SOUTH WALES**

Media application to access a court file

Section A. Applicant's details (*required)

*Name:

*Organisation:

*Contact number:

*Email:

Section B. Court file details

Case number (year/number):

Plaintiff / Appellant name:

Defendant / Respondent name:

Section C. Application for access

I am applying for leave to gain temporary access to the following material from the court proceedings:

Bail applications only

- ☐ Crown bundle
- ☐ submissions by applicant
- ☐ selected images contained in a court file – i.e., screenshots for publication ¹
(specify images):

Court use only

- | | |
|-----------------------------------|----------------------------------|
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |

All other proceedings (including civil, criminal, and appellate)

- ☐ Originating process (statement of claim, summons); pleadings
- ☐ Transcript (specify date range):
- ☐ Exhibit(s)² (specify):
- ☐ Notice of Appeal; grounds of appeal
- ☐ Other(s) (specify):

Court use only

- | | |
|-----------------------------------|----------------------------------|
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |
| ☐ Approved | ☐ Refused |

I submit that access to records on the court file should be granted because (i.e., identify what is in the public interest):

Mode of access

- ☐ I apply for permission to download and use the approved record(s) in accordance with Schedule A

¹ E.g.: images taken from video footage used in the Crown Case Statement, or a photo used in a Criminal History.

² E.g.: Exhibit A (ERISP). Note: once a trial is concluded, exhibits are returned to the parties and files sent to the NSW Government Records Repository. Therefore, applications for access to materials in closed cases may take several weeks to process.

Section D. Applicant's undertaking

I understand that:

- ☐ access to documents in any proceedings is governed by Supreme Court [PracticeNote No. SC Gen 2](#);
- ☐ restrictions on the use of the records are contained in Schedule A.

Signed:

Dated:

Section E. Outcome (Court use only)**Approved**

This application is approved. The requested documents, transcripts or exhibits may be:

- ☐ accessed by a view-only FTP link for up to four weeks from the time of approval
- ☐ downloaded and used in accordance with the conditions of release in Schedule A

Restrictions**Refused**

This application is refused, for the following reason(s):

- ☐ Pleadings not yet closed
- ☐ Other (specify):

Section F: Authorisation (Court use only)

Name:

Dated:

Signature:

Completed applications should be sent to: media@courts.nsw.gov.au

Schedule A. Conditions of release

Downloading and storage

Where an application has been approved and documents, transcripts or exhibits may be downloaded, they must be stored securely while in the possession of any media organisation and protected by reasonable security safeguards against unauthorised access, disclosure, misuse, or loss.

General restrictions

If you are granted access to a record, then you can report on its contents, but you cannot reproduce the record itself, nor any personal identifying information contained therein, such as handwritten signatures/letters, residential addresses, phone numbers, bank account details etc.

Attribution of images

Attribution is a condition of permission to copy and publish images contained in a court file (i.e., Section C). Attribution should include: 'Image supplied by the Supreme Court of NSW'.

Copyright on Court transcripts and judgments

A person must apply for a Crown Copyright Licence from the Court to publish, reproduce, recreate, re-enact, or otherwise use a Court transcript or judgment. A Copyright Crown Licence is granted by the relevant judge at his or her discretion on a non-exclusive basis.

A request for a licence will be directed to the judge to which the transcript or judgment relates. Where the relevant judge is no longer sitting, the request for approval/a Crown Licence will be directed to the Chief Judge of the relevant division.

Approval/a Crown Copyright Licence:

- Does not imply editorial or other authorisation of a work;
- Does not permit derivatives or adaptations of the work;
- Does not permit modification of the work;
- Does not permit the use of the State's arms;
- Is subject to any existing or future publication restriction or other orders which may be made by the Court and is subject always to any other legal restrictions on publication such as identification of minors in court proceedings.

It is your responsibility to ensure you make inquiries and comply with any such orders or other legal restrictions before publication. Publishing, reproducing, recreating, re-enacting, or otherwise using a Court transcript or judgment without Court approval/obtaining a Crown Copyright licence or failing to comply with orders and other legal restrictions, may result in penalty under Division 5 of the *Copyright Act 1968*.

Fees

If the file is located off-site, then a file retrieval fee of \$101.00 per file or per box is payable at the time of lodging this application. If access to the file is refused by the Registrar, then the fee is not refundable.